

Court No. - 32

Case :- WRIT - C No. - 39891 of 2019

Petitioner :- Chhote

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Yadvesh Yadav

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

1. This writ petition, inter alia, has been filed for the following relief;

"(i). Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 13.11.2019 (Annexure No. 8 to the writ petition) issued by respondent no. 2/ Tehsildar, Tehsil Bilari, District Moradabad."

2. Mr. Pranjal Mehrotra, learned counsel for the Electricity Department has submitted that an inspection was made of the premises in questions and the petitioners were found committing theft of electricity, as such, after issuing a notice directing the petitioners to file his objection to the provisional assessment so made against the petitioners, final assessment order was passed.

3. Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code, 2005. .

4. Considering the peculiar facts and circumstances of the case and with the consent of the learned counsel for the parties, this writ petition is being **disposed of** with a direction to the petitioners to appear in person or through

authorized agent on 19.12.2019 at 11 A.M. before the Respondent No. 3, Executive Engineer along with their objections and adduce any evidence, if any, in support of their contention. The Respondent No. 3, thereafter, within a period of 4 weeks shall pass a fresh final order by a speaking order after considering the objections of the petitioners as well as the contention raised by the petitioners.

5. Needless to mention here that in case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

6. For a period of six weeks or till the final order is passed by the Respondent No. 3, Executive Engineer, whichever is earlier, no coercive action shall be taken against the petitioner.

7. In case, the petitioner fail to appear before the Respondent No. 3, Executive Engineer and does not file his objection/documents on the date and time indicated above, the benefit granted to the petitioner under this order shall cease to operate automatically.

8. We make it clear that we have not entered into the merits of the case and the same shall be decided by the authority concerned on its own merits.

9. With this observation, the writ petition stands finally **disposed of**.

Order Date :- 5.12.2019

Arvind